

March 11, 2011



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13264
(FOURTH REVISION)

EXPIRATION DATE: January 31, 2015

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Trinity Manufacturing Inc.
Hamlet, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes limited transportation in commerce within the United States of certain non-insulated, non-DOT specification steel portable tanks containing chloropicrin to facilitate international commerce. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244 in that chloropicrin is not allowed for transport in a non-DOT specification portable tank and § 172.101 Table Column 7, Special Provision B14, in that each tank must be insulated, except as provided herein.
5. BASIS: This special permit is based on the application of Trinity Manufacturing, Inc., dated January 6, 2011, submitted in accordance with § 107.109 and additional information dated March 10, 2011.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chloropicrin	6.1	UN1580	I, Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The authorized packagings are 40 non-DOT specification steel portable tanks bearing owner's serial numbers DSBV 781100 through DSBV 781139. Each tank conforms to IMO Type 5 tank specification and technical specifications on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). New construction is not authorized. The tank must comply with the following:

- (1) Code - Complies with the ASME Section VIII Div. 1 but not certified, and with IMO Type 5 specification. Each tank is enclosed in an ISO type 1C frame.
- (2) Insulation - None.
- (3) Number of Compartments - 1.
- (4) Tank Size (in) - $\frac{\text{outside dia.} \times \text{Length} \times \text{Thickness}}{67 \times 230 \times 0.4 \text{ min.}}$
- (5) Head Thickness (inches) - 0.500 min.
- (6) Water capacity (U.S. Gallons) - 3,263.
- (7) Material - Low alloy carbon steel, tensile strength 78,464 psi min.
- (8) Design Pressure (PSIG) - 217.
- (9) Openings - 20 inch manhole, top; and other top openings, no bottom openings.

(10) Tank surface area (square feet) - 348.

(11) Safety Relief Devices - One 3-3/8" spring loaded safety relief valve outboard of rupture disc, set at 213 psig. Total venting capacity equals 1,200,000 SCFH.

Spring loaded valves must be set to open at not less than design pressure and not more than 130 percent of design pressure.

(12) G-Loadings: Vertical down 2; Vertical up 1; Longitudinal 2; and Transverse 1.

(13) Maximum Gross Weight - 52,910 pounds.

b. TESTING - Each tank must be requalified by an inspection and test at least once every 5 years, in conformance with the provisions of § 180.605 as specified for a UN portable tank. Each tank must be (i) visually inspected prior to each trip to ensure that it has not been damaged on the previous trip; (ii) visually inspected at least once in every 2-1/2 years in accordance with the provisions of § 180.605; and (iii) pressure tested at least once every 5 years, one and one-half times the design pressure plus static head.

c. OPERATIONAL CONTROLS -

(1) Highway transportation must be between Hamlet NC and the Port of Savannah GA, or to other ports approved by the Associate Administrator of Hazardous Materials Safety. Return transportation is authorized. Routing must be selected to avoid population centers.

(2) Drivers must be instructed as to necessary safeguards and proper procedure in the event of unusual delay. Additionally, drivers must be trained and instructed to, when possible, move their vehicle away from the site of an accident involving a loss of fuel or fire, provided no lives will be endangered by moving the vehicle.

(3) Cargo vessel stowage must be on deck only, clear of living quarters.

March 11, 20118. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at grantee's facility in Hamlet, NC.

c. Each tank must be plainly and durably marked with the special permit number "DOT-SP 13264" on a contrasting background, in accordance with § 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: PTOlson/mb